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ELECTRONICALLY
F I L E D
Superior Court of California, County of San Francisco
01/28/2026
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

JEREMY BERENS and
PATRICIA SZAFRANSKI-BERENS,

Plaintiffs,

vs.

ADAM BRADY; EMMA BRADY; and
DOES 1 to 30,

Defendants.
_____/

Case No. CGC-24-611337

***EX PARTE* APPLICATION, PURSUANT TO STIPULATION, FOR CONTINUANCE OF TRIAL**

Dept: 206
Date: January 29, 2026
Time: 11:00 a.m.

Defendants, Adam Brady and Emma Brady ["the Bradys"], hereby apply, pursuant to the stipulation of the parties, for an order continuing trial of this action, presently set in Department 206 of the above-named court for 9:30 a.m. on April 6, 2026, to 9:30 a.m. on August 17, 2026 or as soon thereafter as the matter may be heard, and resetting all pre-trial deadlines on the basis of, and with reference to, the new trial date.

I.

PROCEDURAL HISTORY

This action was filed on January 2, 2024. (San Francisco County Superior Court Register of Actions ["ROA"], Transaction No. 71718892, January 2, 2024.)

Service of the complaint on the Bradys in this action was completed on or about May 23, 2024. (Declaration of Joseph Wood In Support Of *Ex Parte* Application, Pursuant To Stipulation, For Continuance Of Trial ["Wood Decl."], filed herewith, paragraph 2.) They filed their answer on July 8, 2024. (ROA, Transaction No. 73568571, July 8, 2024.).

All parties have stipulated to the continuance currently being sought. (Stipulation In Support Of *Ex Parte* Application For Continuance of Trial, submitted herewith; Wood Decl., paragraph 3.)

One prior continuance has been granted in this matter, moving the trial from 9:30 a.m. on September 6, 2025, to 9:30 a.m. on April 6, 2026. It had been requested jointly by the parties because the Stillwater Property and Casualty Insurance Company ["Stillwater"], one of the Brady's insurers, had not yet issued a determination as to coverage, and the absence of such a determination had materially impaired the parties' ability to move this case forward. After much delay, on or about September 29, 2025, Stillwater issued a negative determination, denying coverage, a defense, and indemnification to the Bradys. (Wood Decl., paragraph 4.)

II.

STATEMENT OF RELEVANT FACTS

Since the Court granted the prior continuance, the Bradys' trial counsel, Joseph Wood, has experienced, and continues to experience, flareups of a debilitating autoimmune condition. These flareups are episodic and unpredictable, and when they occur they materially impair Mr.

Wood's ability to perform sustained litigation tasks, including discovery and trial preparation. For that reason, Mr. Wood anticipates that, in order to complete those tasks, he will need approximately one hundred thirty days beyond the period of time the parties had previously believed would be sufficient. (Wood Decl., paragraph 5.)

In addition, the parties have met and conferred and agree, in light of the insurance situation, that this case is an excellent candidate for resolution through private mediation. The mediation process, with suspension of discovery while that process is being arranged and carried through, will make it problematic for the parties to be ready for trial on the presently scheduled date should the case not resolve. Again, an additional one hundred thirty days should obviate the problem. (Wood Decl., paragraph 6.)

This request is made in good faith and not for purposes of delay. (Wood Decl., paragraph 7.)

III.

GOOD CAUSE EXISTS FOR THE CONTINUANCE SOUGHT

A. Applicable Law.

The Presiding Judge, on stipulation of the parties, may continue trial to a date convenient for the Court pursuant to an *ex parte* application. San Francisco County Superior Court, Uniform Local Rules of Court, Rule 6.0B. Parties seeking a stipulated continuance of the trial date must submit: (1) An *ex parte* application establishing good cause for the continuance, including a declaration that there have been no prior continuances or stating the number of prior continuances, the reasons for those, and the party seeking those; (2) a filed stipulation by all parties including an agreement to a specific trial date; and (3) a proposed order. *Id.* In order for a continuance to be granted, good cause must be shown. *Id*.

Rule 6.0B implements and supplements California Rules of Court, Rule 3.1332, which establishes the general framework for treatment of requests for continuances. Under that framework, "The Court may grant a continuance of trial only upon an affirmative showing of good cause requiring continuance." California Rules of Court, Rule 3.1332(c). Circumstances that may constitute good cause include "(3) [t]he unavailability of trial counsel because of death,

illness, or other excusable circumstances …" and "(7) [a] significant, unanticipated change in the status of the case as a result of which the case is not ready for trial." *Id.*

Further, "in ruling on a motion or application for continuance, the Court must consider all the facts and circumstances that are relevant to the determination," which may include "(2) [w]hether there was any previous continuance, extension of time, or delay of trial due to any party ... (5) [t]he prejudice that Parties or witnesses will suffer as a result of the continuance … (9) whether all Parties have stipulated to a continuance …" and "(10) [w]hether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance." California Rules of Court Rule 3.1332(d).

An order granting or denying a continuance is reviewed under the abuse of discretion standard. Such decisions will be upheld unless a clear abuse is shown, amounting to a miscarriage of justice. *Bussard v. Dept. of Motor Vehicles*, 164 Cal. App. 4th 858, 864 (2008).

The factors which influence the granting or denying of a continuance in any particular case are so varied that the trial judge must necessarily exercise a broad discretion. *Taylor v. Bell*, 21 Cal. App. 3d 1002, 1007 (1971).

Since it is impossible to foresee or predict all of the vicissitudes that may occur in the course of a contested proceeding, the determination of a request for continuance must be based upon the facts and circumstances of the case as they exist at the time of the determination. *Boussard*, *supra*, at 864 (citing *Arnett v Office of Admin. Hearings* 49 Cal. App. 4th 332, 342-343 (1996)).

Liberality should be exercised in granting continuances when they are not prejudicial to the interest of other parties to the action. *Whalen v. Superior Court In and For Los Angeles County*, 184 Cal. App. 2d 598, 601 (1960) (citing *Capital National Bank v. Smith*, 62 Cal. App. 2d 328, 339); *Cohen v. Herbert*, 186 Cal. App. 2d 488, 494 (1960) (citing *Canal Oil Co. v. National Oil Co.*, 19 Cal. App. 2d 524, 535).

"The trial judge must exercise his discretion with due regard to all interests involved, and the refusal of a continuance which has the practical effect of denying the applicant a fair hearing

is reversible error." *In re Marriage of Hoffmeister,* 161 Cal. App.3d 1163, 1169 (1984) (citing numerous cases and 2 Wilkin, California Procedure (2d ed. 1971) Trial, § 8 pp. 2865-2866).

B. Good Cause is Present Here.

As noted above, the Court may grant a continuance only on an affirmative showing of good cause requiring the continuance, and each request must be considered on its own merits. California Rules of Court, rule 3.1332(c).

First, good cause is present here because of the unexpected health problems of defendants' trial counsel, as described above. California Rules of Court, rule 3.1332(c)(3).

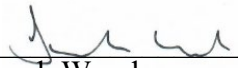
Second, the long-delayed determination of lack of insurance coverage, and the parties' resulting agreement to undertake mediation, comprises a significant, unanticipated change in the status of the case that will make it difficult to be ready for trial on the presently scheduled date. Again, good cause is present here. California Rules of Court, rule 3.1332(c)(7).

Finally, the relevant discretionary factors under California Rules of Court, rule 3.1332(d) weigh in favor of continuance. Only one prior continuance, requested jointly by the parties, has been granted. The continuance now requested, from April 6, 2026, to August 17, 2026, is limited in scope. That continuance is stipulated to by all parties, and a continuance will therefore not prejudice any party. *See* California Rules of Court, rule 3.1332(d)(2), (3), (5), (9), (10). Granting the requested relief will promote judicial economy and serve the interests of justice by allowing the parties to pursue mediation now that the insurance issue has been clarified, and by ensuring that trial counsel will be able to prepare adequately for trial should the case not resolve.

The requisite good cause having been shown, the present application should be granted. Respectfully submitted.

DATED: January 26, 2026

HENNEFER & WOOD, LLP



Joseph Wood,

Attorneys for Defendants, Adam Brady and Emma Brady

PROOF OF SERVICE

Alexander Vaisman declares:

1. I am over twenty-one years of age and am not a party to the above-named action. My business address is 1 Sansome Street, Suite 1400, San Francisco, CA 94104.

2. On January 27, 2026, in San Francisco, California, I served the attached

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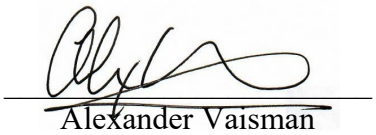
on the parties that have appeared in this action.

3. Service was made by email transmission as follows:

Tom H. Elke
Alexander Merchant
Elke & Merchant
Email address: alex@elkemerchant.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true.

DATED: January 27, 2026



Alexander Vaisman